I certify that this instrument was
filed on 12/07/2006 03:42 PM
and recorded in:
MISC-E Book 24
at pages 1285 - 1286
Janet Luff
Circuit Clerk - Clay County, AR
by Janet Rupp D.C.

ORDINANCE NO. 425

AN ORDINANCE VACATING A STREET PART OF HIGHLAND AVENUE LYING BETWEEN BLOCK 2 AND BLOCK 3 OF BELEW'S ADDITION TO THE CITY OF RECTOR, ARKANSAS AND AUTHORIZING THE CITY RECORDER TO RECORD SAID ORDINANCE IN THE DEED RECORDS OF THE COUNTY.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the 7th day of July, 1995, asking the City Council to vacate and abandon all that portion of a street designated on the plat of part of Highland Avenue lying between Block 2 and Block 3 of Belew's Addition to the City of Rector, Arkansas, now appearing of record in Deed Record 1 at page 182 in the office of the Circuit Clerk and Ex-Officio Recorder for the Eastern District of Clay County, Arkansas.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that a street or the portion thereof, hereinbefore described, has heretofore been dedicated to the public use as a street herein described; that said street has not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that all the owners of the property abutting upon the portion of a street to be vacated have filed with the Council their written consent to such abandonment; and the public interest and welfare will not be adversely affected by the abandonment of such street.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of the public generally, in and to a street designated as follows:

That part of Highland Avenue lying between Block 2 and Block 3 of Belew's Addition to the City of Rector, Arkansas.

SECTION 2. A copy of the ordinance duly certified by the City Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County.

SECTION 3. This ordinance shall take effect and be in force from and after its passage.

This ordinance being necessary for the health, safety and welfare of the citizens of Rector and necessary for the closing of a street located in part of Highland Avenue lying Block 2 and Block 3 of Belew's Addition, an emergency is declared to exist and this ordinance shall take effect and being in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this 7th day of August, 1995.

Ron Kemp, Mayor

Attest:

Kenneth R. Burns
City Clerk